BY ORDER OF THE COMMANDER
UNITED STATES AIR FORCES
EUROPE-AIR FORCES AFRICA

UNITED STATES AIR FORCES
EUROPE-AIR FORCES AFRICA
INSTRUCTION 51-411

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Law

SERVICE OF LEGAL PROCESS WITHIN UNITED STATES FORCE INSTALLATIONS IN THE UNITED KINGDOM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements Air Force Policy Directive (AFPD) 51-4, *Operations and International Law*, and Air Force Instruction (AFI) 51-402, *International Law*. This instruction is consistent with AFI 51-301, *Civil Litigation*, and USAFE-AFAFRICAI 51-402, *Foreign Criminal Jurisdiction*. This instruction establishes a uniform procedure for the service of legal process on United States (US) personnel within the boundaries of US Installations. This instruction is applicable to all elements of the US Force, permanently stationed or on temporary duty in the UK. This publication applies to the United States Space Force, Air Force Reserve Command, and to the Air National Guard of the United States. This publication requires the collection and maintenance of information protected by the Privacy Act of 1974 authorized by Sec. 552(a). The applicable System of Records Notices, F051 AF JA H—Litigation Records (Except Patents) and F051 AFJA D—Patent Infringement and Litigation Records, are available at **https://doc.defense.gov/DIRECTORATES/Privacy-and-Civil-Liberties-Directorate/Privacy/SORNsIndex/DoD-Component-Notices/Air-Force-Article-List/**. The reporting requirements in this instruction are exempt from licensing in accordance with AFI 33-324, *The Air Force Information Collections and Reports Management Program*. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the OPR using DAF Form 847, *Recommendation for Change of Product*; route DAF Forms 847 from

the field through the appropriate functional chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of The Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the publication Office of Primary Responsibility for non-tiered compliance items This publication may not be supplemented or further implemented or extended.

SUMMARY OF CHANGES

This document has minor administrative changes to include updating applicable references throughout.

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1. Scope. This instruction provides guidance regarding the service of criminal and civil legal process ("service of process") against US personnel within US Force installations in the UK. "US personnel" is defined as US military personnel, regardless of nationality; civilians who are US nationals and are serving with, employed by, or accompanying the US military forces; and their family members. References to "US personnel" in this instruction include individual persons meeting this definition. This instruction does not apply to attempted service of process against the US Government (USG), to include against any USG department or agency, subordinate unit or organization, or USG personnel in their official capacity. For civil litigation matters and attempted service of process against the USG, refer to AFI 51-301, Chapter 5.

2. General. UK authorities have the authority to serve process on US personnel both on and off installations occupied by the US Force in the UK. As further detailed in this instruction, US military authorities assist in the service of process by locating the US personnel sought and providing a place for service to be made.

3. Procedure to be Followed.

3.1. **Criminal Process.**

3.1.1. **Service of Criminal Process by Process Server.**

3.1.1.1. When a process server enters an installation, he or she must contact, or be referred to the Office of the Staff Judge Advocate (SJA). During non-duty hours, the on-call judge advocate will be available.

3.1.1.2. The Office of the SJA will arrange a date, time and location for service of process with both the process server and the US personnel to be served. The Office of the SJA will advise the US personnel served whether legal assistance is available. **(T-2)**

3.1.1.3. If possible, service of process should be made at the legal office and in the presence of legal personnel. The Office of the SJA should make a copy of the process or prepare a memorandum of its contents. The copy or memorandum should reflect the name and location of the court for appearance, the date and time of appearance or answer, and the nature of the charge **(T-2)**

3.1.1.4. Offices of the SJA should be aware that under arrangements with the UK courts, bailiffs are authorized to serve arrest warrants for non-payment of fines.

3.1.2. **Service of Criminal Process by Mail.**

3.1.2.1. If a US organizational unit receives process by mail, the unit must immediately contact the Office of the SJA and provide it with the process documentation.

3.1.2.2. Upon receipt of the process, the Office of the SJA must follow the guidance detailed above in paragraphs **3.1.1.2** and **3.1.1.3**. Additionally, the Office of the SJA must advise the person or entity attempting to issue the process that US military and civilian personnel are not authorized to serve such process, nor accept service on a person's behalf. **(T-2)**

3.1.3. **Additional Factors Involving Criminal Process.** After service has been completed, the Office of the SJA must consider the following factors, taking action as required in accordance with the cited references:

3.1.3.1. The Office of the SJA must notify the unit commander of the US personnel served, and other interested offices (e.g., USAFE-UK/JA and Military Personnel Flight (MPF). **(T-2)**

3.1.3.2. The Office of the SJA and MPF must coordinate and determine whether the US personnel served must or should be placed on international hold. Per agreement with British authorities, US service members subject to criminal proceedings are not authorized to leave the UK prior to the matter being resolved. US civilians and dependents will also be restricted from travel at US Government expense until criminal proceedings against them are completed (see USAFE-AFAFRICAI 51-402, Attachment 16). All problems encountered in implementing this requirement should be referred to USAFE-UK/JA.

3.1.3.3. The Office of the SJA must analyze the summons to determine whether US or UK authorities have the primary right to exercise jurisdiction over the case or whether to actively seek a waiver of jurisdiction in accordance with Article VII of the NATO Status of Forces Agreement (NATO SOFA).

3.1.3.4. If authorized and requested by the US personnel served, commanders should convey a request for a foreign counsel to the SJA and requests for a military defense counsel to the servicing office of the Area Defense Counsel.

3.1.3.5. The Office of the SJA must determine whether Counsel Fees are authorized in accordance with AFI 51-402.

3.1.3.6. If required, the Office of the SJA must assign an appointed Trial Observer in accordance with AFI 51-402 and USAFE-AFAFRICAI 51-402.

3.2. **Civil Process.**

3.2.1. The Office of the SJA must follow the same procedures for civil process as for criminal process as detailed above in paragraphs **3.1.1** and **3.1.2**. The Office of the SJA must consider the factors detailed above in **paragraph 3.1.3**, to the extent applicable and relevant.

3.2.2. The Office of the SJA must examine the civil process to determine if the matter should be reported in accordance with AFI 51-301 (for Air Force personnel), or in accordance with AR 27-40, *Litigation*.

4. Restriction. US military and civilian personnel must not accept service of process on behalf of US personnel. Additionally, US military and civilian personnel are not authorized to serve process on US personnel on behalf of a third-party.

CHARLES J. HEBNER, Colonel, USAF
Staff Judge Advocate USAFE-AFAFRICA

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

AFI 33-324, *The Air Force Information Collections and Reports Management Program,* 22 July 2019

AFI 51-301, *Civil Litigation*, 2 October 2018

AFI 51-402, *International Law*, 6 August 2018

AFPD 51-4, *Operations and International Law*, 24 July 2018

AR 27-40, *Litigation*, 19 September 1994

DAFMAN 90-161, *Publishing Processes and Procedures,* 18 October 2023

USAFE-AFAFRICAI 51-402, *Foreign Criminal Jurisdiction*

Prescribed Forms

None

Adopted Forms

DAF847, *Recommendation for Change of Product*

Abbreviations and Acronyms

AFI—Air Force Instruction

AFPD—Air Force Policy Directive

MPF—Military Personnel Flight

SJA—Staff Judge Advocate

UK—United Kingdom

US—United States

USG—US Government

Office Symbols

USAFE-UK—United States Air Forces Europe-United Kingdom